



CAVITE STATE UNIVERSITY

IMPLEMENTING RULES AND REGULATIONS ON
REPUBLIC ACT NO. 7877 OR THE

ANTI-SEXUAL HARASSMENT

ACT OF 1995

AND

REPUBLIC ACT NO. 11313 OR THE

SAFE SPACES

ACT OF 2019



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Cavite State University
Implementing Rules and Regulations on Republic Act No. 7877 or
the Anti-Sexual Harassment Act of 1995 and Republic Act No.
11313 of 2019 or the Safe Spaces Act

**CvSU ANTI-GENDER-BASED SEXUAL HARASSMENT
IMPLEMENTING RULES AND REGULATIONS**

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**CvSU ANTI-GENDER-BASED SEXUAL HARASSMENT
IMPLEMENTING RULES AND REGULATIONS**

Pursuant to its powers vested by law, the Administrative Council of the Cavite State University hereby promulgates this Anti-Gender Based Harassment Code Implementing Rules and Regulations within the jurisdiction of the Cavite State University.

Section 1. *Short Title.* This shall be known as the Cavite State University Anti-Gender-Based Sexual Harassment Implementing Rules and Regulations.

Section 2. *Declaration of Policy.* Cavite State University values and upholds the dignity of every individual and guarantees full respect for human rights of all members of the CvSU community.

All forms of gender-based sexual harassment are deemed improper and unacceptable.

Cavite State University shall maintain an enabling, gender-fair, safe, inclusive, and healthy learning and working environment for the CvSU Community.

It is also committed to truth and will ensure prompt investigation of all allegations of gender-based harassment that happens within its jurisdiction in a fair and objective manner.

Section 3. *Purpose.* Gender-based sexual harassment can happen anywhere be it in public spaces, offices, or educational institutions that it is no longer necessary that sexual harassment be limited to those that were mentioned in RA 7877. With the advent of social media, RA 11313 also included the protection even to cyberspace and provides acts and their corresponding penalties.

Hence, CvSU Implementing Rules and Regulations on Republic Act No. 7877 is hereby expanded to include the Safe Spaces Act of 2019 where it states that anyone can be an offender, regardless of age, sex, or status.

Hence, CvSU Implementing Rules and Regulations on Republic Act No. 7877 incorporating Republic Act No. 11313 of 2019 otherwise known as Safe Spaces Act is prepared,

(a) In compliance with the following rules and regulations:

- Section 4 of the “Duty of the Employer or Head of Office in a Work-related, Education or Training Environment” indicated in Republic Act No. 7877 or Anti-Sexual Harassment Act of 1995;
- Section 17 of the “Duties of Employers” indicated in Republic Act No. 11313 or Safe Spaces Act;
- Section 58 of the “Administrative Disciplinary Rules on Sexual Harassment Cases embodied in Civil Service Commission Resolution No. 01-0940;
- CSC MC No. 17, Series of 2001, “Administrative Disciplinary Rules on Sexual Harassment Cases in the Civil Service”, which states that:

“All national and local government agencies, state colleges and universities, including government-owned or controlled corporations with original charter, shall promulgate or modify their own rules and regulations”.

- CSC MC No. 11, Series of 2021, “Revised Administrative Disciplinary Rules on Sexual Harassment Cases (Amendment to the Sexual Harassment Provisions in the 2017 Revised Rules on Administrative Cases in the Civil Service).

- (b) To establish procedures and standards for Cavite State University governing the prevention of gender-based sexual harassment; procedure for the resolution; disposition of gender-based sexual harassment cases; as well as prescribing the proper decorum in the workplace for officials, faculty members, non-academic personnel, students, and trainees.

Section 4. Affirmation of Policy. In affirmation of the Declaration of Policy set forth in Section 2 of Republic Act No. 7877 and Section 2 of Republic Act No.11313, the Cavite State University shall establish and maintain an environment in which the dignity and worth of all members of the academic community are guaranteed full respect.

The following standards and guidelines shall be observed by Cavite State University, to wit:

- a. These implementing rules and regulations shall apply to all academic and non-academic personnel, and students of the University.
- b. Gender-based sexual harassment is a disgraceful conduct which undermines the mission of the University and demoralizes the dignity of the members of the CvSU community. The University shall undertake measures to prevent and eliminate gender-based sexual harassment.
- c. All reported incidents or cases of gender-based sexual harassment, including incidents between member/s of the CvSU community and partner entities, shall be appropriately acted upon by the University.
- d. The University shall provide appropriate services to parties to gender-based sexual harassment cases.

- e. Retaliation, in any form, against persons directly or indirectly involved in any incident report or case involving gender-based sexual harassment, shall be a ground for disciplinary action.

Section 5. Coverage. These implementing rules and regulations apply to all members of the CvSU community.

The *CvSU Community* refers to persons, natural or juridical, inclusive of academic and non-academic personnel, and students as defined herein.

- a. Academic Personnel – any member of the teaching staff of CvSU, regardless of academic rank or status of appointment, including any person with teaching responsibilities.
- b. Non-Academic Personnel – any person who works for CvSU, not included in the Academic Personnel regardless of status of appointment.
- c. Student – any individual admitted to and registered in any program of the University on a regular or part-time basis, including one who is officially on leave of absence; and who has not yet been separated from the University formally through either transfer, graduation, honorable or dishonorable dismissal, expulsion or expiration of the period allowed for maximum residence, at the time of the commission of the act of gender-based sexual harassment, regardless of whether or not they are enrolled in any unit of the University at the time of the filing of the charge or during the pendency of the disciplinary proceedings, including any person undertaking on-the-job training.
- d. Other CvSU Workers – refers to non-CvSU contractual and job order workers, who are under a contractual teaching and non-teaching arrangement, including, but not limited to coach, mentor, trainer, consultant.

- e. CvSU Organizations - refers to organizations or groups registered or recognized by the University or any of its offices/units.

Section 6. Definition of Terms. As issued in this implementing rules and regulations, the following terms shall mean and be understood as indicated below:

- a. Academic activity – any activity that involves academics such as, but not limited to classes, tutorials, seminars, workshops, conferences, lectures, examinations, fieldwork, externships/internships, on-the-job trainings, for the fulfillment of academic requirements and others.
- b. Juridical person – refers to partnerships, corporations, cooperatives, and labor unions.
- c. Partner entity – refers to any private or public person, natural or juridical, with which the University has teaching, research, extension, and other service arrangements.
- d. Complainant – the aggrieved person who files a complaint, or any person initially acting in their behalf. They shall be considered a complaining witness.
- e. Respondent – one against whom a Formal Charge is issued.
- f. Gender - a set of socially and culturally ascribed characteristics, norms, roles, attitudes, values and expectations identifying the social behavior of men and women, and the relations between them.
- g. Gender identity and/or expression - the personal sense of identity as characterized, among others, by manner of clothing, inclinations, and behavior in relation to masculine or feminine conventions. A person may have a male or female identity with

physiological characteristics of the opposite sex in which case this person is considered transgender.

- h. Gender-Based Online Sexual Harassment - an online conduct targeted at a particular person that causes or likely to cause another mental, emotional or psychological distress, and fear of personal safety, sexual harassment acts including unwanted sexual remarks and comments, threats, uploading or sharing of one's photos without consent, video and audio recordings, cyberstalking and online identity theft.
- i. Gender-Based Sexual Harassment in the Workplace - a conduct of sexual nature and other conduct-based on sex and/or gender affecting the dignity of a person, which is unwelcome, unreasonable, and offensive to the recipient, whether done verbally, physically or through the use of technology such as text messaging or electronic mail or through any other forms of information and communication systems. May also be committed between peers and those committed to a superior officer by a subordinate, or to a teacher by a student, or to a trainer by a trainee.
- j. Public spaces - refer to streets and alleys, public parks, schools, buildings, malls, bars, restaurants, transportation terminals, public markets, spaces used as evacuation centers, government offices, public utility vehicles as well as private vehicles covered by app-based transport network services and other recreational spaces such as, but not limited to, cinema halls, theaters, and spas.
- k. Safe Space – is a formal or informal place where a person feels comfortable, physically, and emotionally safe, and enjoy the freedom of self-expression without the fear of judgment or harm.
- l. Stalking - conduct directed at a person involving the repeated visual or physical proximity, non-consensual communication, or a combination thereof that cause

or will likely cause a person to fear for one's own safety or the safety of others, or to suffer emotional distress.

- m. Catcalling - unwanted remarks directed towards a person, commonly done in the form of wolf-whistling and misogynistic, transphobic, homophobic, and sexist slurs.
- n. Cyberstalking – a form of stalking that is committed through an electronic medium in which online communication takes place.
- o. Homophobic remarks – any statements in whatever form or however delivered, which are indicative of fear, hatred or aversion towards persons who are perceived to be or actually identify as lesbian, gay, bisexual, queer, pansexual and such other persons of diverse sexual orientation, gender identity or expression, or towards any person perceived to or actually have experience same-sex attraction.
- p. Misogynistic remarks or slurs – any statement in whatever form or however delivered, that are indicative of the feeling of hating women or the belief that men are inherently better than women.
- q. Sexist remarks or slurs – statements in whatever form or however delivered, that are indicative of prejudice, stereotyping, or discrimination on the basis of sex, typically against women.
- r. Transphobic remarks or slurs – any statements in whatever form or however delivered, that are indicative of fear, hatred or aversion towards persons whose gender identity and/or expression do not conform with their sex assigned at birth.
- s. Information and communication system – a system for generating, sending, receiving, storing or otherwise processing electronic data messages or electronic

documents and includes the computer system or other similar devices by or in which data are recorded or stored and any procedure related to the recording or storage of electronic data messages or electronic documents.

- t. Information and Communication Technology or ICT - the totality of electronic means to access, create, collect, store, process, receive, transmit, present, and disseminate information.

Section 7. Sexual Harassment Defined. CSC, Resolution No. 01-0940, defines sexual harassment as an act or a series of acts, involving any unwelcome sexual advances, request or demand for a sexual favor, or other verbal or physical behavior of a sexual nature, committed by a government employee or official in a work-related, training or education related environment of the person complained of:

- a. In a work-related environment, sexual harassment is committed under the following circumstances,
 - 1. Submission or rejection of the act or series of acts is used as a basis for any employment decision (including, but not limited to, matters related to hiring, promotion, raise in salary, job security, benefits and any other personnel action) affecting the applicant/employee; or
 - 2. The act or series of acts have the purpose or effect of interfering with the complainant's work performance, or creating an intimidating, hostile or offensive work environment; or
 - 3. The act or series of acts might reasonably be expected to cause discrimination, insecurity, discomfort, offense or humiliation to a complainant who may be a co-employee, applicant, customer, or word of the person complained of.

- b. In an education or training environment, sexual harassment is committed against one who is under the actual or constructive care, custody or supervision of the offender, or against one whose education, training, apprenticeship, internship or tutorship is directly or constructively entrusted to, or is provided by, the offender, when:
 - 1. Submission to or rejection of the act or series of acts as a basis for any decision affecting the complainant, including, but not limited to, the giving of a passing grade, the granting of honors or a scholarship, the payment of a stipend or allowance, or the giving of any benefit, privilege or consideration; or
 - 2. The act or series of acts have the purpose or effect of interfering with the performance, or creating an intimidating, hostile or offensive academic environment of the complainant; or
 - 3. The act or series of acts might reasonably be expected to cause discrimination, insecurity, discomfort, offense or humiliation to a complainant who may be a trainee, apprentice, intern, tutee or ward of the person complained of.

Section 8. Site. Sexual harassment may take place in any of the following:

- a. In the premises of the workplace or office or of the school or training institution;
- b. In any place where the parties were found as a result of work or education or training responsibilities or relations;
- c. At any education or training related social function;

- d. While on official business outside the office or school or training institution or during work or school or training related travel;
- e. At official conferences, fora, symposia, training sessions; or
- f. By telephone, cellular phone, fax machine, and electronic mail.

Section 9. *Forms of Sexual Harassment.* The acts of sexual harassment may take any of the following forms, (CSC Resolution No. 01-0940 dated May 21, 2001):

- a. Physical, such as: malicious touching, overt sexual advances, gestures with lewd insinuation;
- b. Verbal, such as but not limited to, requests or demands for sexual favors, and lurid remarks;
- c. Use of objects, pictures or graphics, letters or written notes, text via cellular phones with sexual underpinning's; and
- d. Other forms analogous to the foregoing.

Section 10. *Persons Liable for Sexual Harassment.* The persons liable to commit sexual harassment and other related sexual offenses are those of the same or opposite sex who are, (CHED Memorandum No. 1, s. 2015):

- a. Having authority, influence or moral ascendancy over another in any aspect of academic or administrative work, such as an officer, faculty member, employee, coach or trainer; and
- b. In peer relationships.

Section 11. *Gender-Based Sexual Harassment in the Workplace.* As embodied in the Implementing Rules and Regulations of RA 11313 and CSC Resolution No. 2100064

dated January 20, 2021, *sexual harassment in the workplace* includes the following:

- a. An act or series of act involving any unwelcome sexual advances, request or demand for sexual favors or any act of sexual nature, whether done verbally, physically or through the use of technology such as text messaging or electronic mail or through any other forms of information and communication systems, that has or could have a detrimental effect on the conditions of an individuals' employment or education, job performance or opportunities.
- b. A conduct of sexual nature affecting the dignity of a person, which is unwelcome, unreasonable and offensive to the recipient, whether done verbally, physically or through the use of technology such as text messaging or electronic mail or through any other forms of information and communication systems.
- c. A conduct that is unwelcome and pervasive and creates an intimidating, hostile or humiliating environment for the recipient.

It may also be committed between peers, and by a subordinate to a superior officer, or to a teacher by a student, or to a trainer by a trainee.

Workplaces shall include all sites, locations, spaces, where work is being undertaken by an employee within or outside the premises of the usual place of business of the employer.

Section 12. Gender-Based Online Sexual Harassment.

Gender-based online sexual harassment includes acts that use information and communications technology in terrorizing and intimidating victims through:

- a. Physical, psychological, and emotional threats, unwanted sexual misogynistic, transphobic, homophobic and sexist remarks and comments online

whether publicly or through direct and private messages.

- b. Invasion of the victim's privacy through cyberstalking and incessant messaging.
- c. Uploading and sharing without the consent of the victim any form of media that contains photos, voice, or video with sexual content.
- d. Any unauthorized recording and sharing of any of the victim's photos, videos or any information online.
- e. Impersonating identities of victims online or posting lies about victims to harm their reputation.
- f. Filing false abuse reports to online platforms to silence victims.

Section 13. Gender-Based Sexual Harassment in Educational and Training Institutions.

In training and educational institutions, sexual harassment may be committed by principals, school heads, college deans, campus administrators, teachers, instructors, professors, coaches, trainers, or any person who has authority, influence or moral ascendancy over another, students, and trainees. Under the Safe Spaces Act of 2019 anyone can be an offender, regardless of age, sex or status. In training and educational institutions, gender-based sexual harassment is committed:

- a. Against a student, trainee by a faculty, trainer, coach, or employee.
- b. Against a faculty, trainer, or coach by a student or trainee or employee.
- c. Against a subordinate by a supervisor.
- d. Against a supervisor by a subordinate.
- e. Against peers by classmates or friends or co-employees.

- f. Against third party service providers and suppliers and other stakeholders by students, faculty, and co-workers.
- g. Against students, employee by third party service providers and suppliers and other stakeholders.

Section 14. Site. Gender-based sexual harassment may take place anywhere within Cavite State University premises covering its satellite campuses, including organizations, companies, on-the-job sites which CvSU has partnered with for its students, faculty members, and employee's internship, apprenticeship, seminar/workshops, or training development. It will also cover outsourced services such as buses, jeepneys, canteen concessionaires, and janitorial and security services, among others.

Section 15. Duty of Head of Institution. The head of the university shall have the following duties (IRR of RA 11313):

- a. Create a Committee on Decorum and Investigation of cases on sexual harassment.
- b. Furnish a copy of these Implementing Rules and Regulations to each of the official, faculty member, employee, trainee, and student in the Cavite State University, posting a copy thereof in two conspicuous locations in every college/campus/unit of the University and posting a copy of the law and its Rules in the official website of the university.
- c. Ensure that a program to capacitate all university officials and staff of the Office of the Students Affairs and Services and the Human Resource Development Office on the efficient and professional handling of gender-based sexual harassment cases or other related sexual offenses is institutionalized.
- d. Prevent or deter the commission of acts of gender-based sexual harassment through an extensive awareness campaign or informal education research and survey of data to determine the extent of the

problem, the profile of harassers and their victims and the forms of sexual harassment and its consequences.

Section 16. Committee on Decorum and Investigation and its Functions. The Committee on Decorum and Investigation (CODI) shall be created in the Cavite State University. The committee shall perform the following functions, (CSC MC No. 11, s. 2021):

- a. Serve as an independent internal mechanism to address and investigate complaints of sexual harassment/gender-based sexual harassment.
- b. Receive complaints of gender-based sexual harassment or other related sexual offenses.
- c. Investigate gender-based sexual harassment complaints in accordance with the prescribed procedure.
- d. Submit a report of its findings with the corresponding recommendation to the University President for decision.
- e. Lead in the conduct of discussions about gender-based sexual harassment within the university to increase understanding and prevent incidents of sexual harassment.
- f. Ensure the protection of a complainant from retaliation without causing him/her any disadvantage, diminution of benefits or displacement, and without compromising his/her security of tenure.
- g. Guarantee gender-sensitive handling of cases, and confidentiality of the identity of the parties and the proceedings to the greatest extent possible.

- h. Conduct such other activities that would engender a safe environment for all in the university and training-related programs.

Section 17. Composition. The Committee on Decorum and Investigation (CODI) shall be **headed by a woman** and **not less than half of its member shall be women**.

Chairperson- Highest Ranking Female University Official next to the University President

Vice-Chairperson - **Director, Gender and Development Resource Center

Members - **Director, Human Resource Development Office
- **Dean, Office of Student Affairs and Services
- Faculty Association Representative
- Non-Academic Association Representative
- Student Representative

*****Note: Considering that designated university officials are discretion of the University President, and in the event a male official has been designated by the President, then the most senior female employee of that unit will sit as member of the committee to ensure that the CODI is headed by a woman and not less than half of its members shall be women.***

Aside from the regular members of the CODI, the head of the institution must designate their respective permanent alternate who shall act on their behalf in case of absence of the regular member and must have authority to render decision so as not to delay the proceedings being undertaken and to ensure continuity of deliberation.

When a member of the Committee is the complainant or the person complained of in a gender-based sexual harassment case, he/she shall be disqualified from being a member of the Committee (CSC Resolution No. 2100064 dated January 20, 2021).

Section 18. *Reporting an Incident.*

a. Regular Channels

The different members of the CvSU community may approach these designated offices to report incidents of GBSH:

1. Students may report to their designated College/Campus GAD Coordinator, Student Council GAD Representative, and Office of Student Affairs and Services.
2. Parents may report to the Office of the Dean/Campus Administrator.
3. Faculty members and non-academic personnel may report to the GADRC Director.
4. Third party service providers and suppliers may report to the office of the Vice President for Administrative and Support Services.
5. CvSU Safe Spaces Email:
safespaces.gadrc@cvsu.edu.ph

This is a dedicated email where student, faculty and employees may report incidents, violations, or concerns related to safe spaces. Senders have the option to report an incident or file a complaint. Either way, complainants are assured that every report will be treated with utmost confidentiality.

- b. Even if an individual does not want to file a complaint or does not request that CvSU take action on behalf of a student, faculty member or non-academic personnel and CvSU Officials have knowledge or reasonably know about a possible or impending act of gender-based sexual harassment, CvSU should promptly investigate to determine the veracity of such

information or knowledge and the circumstances under which the act of gender based sexual harassment was committed, and take appropriate steps to resolve the situation.

- c. Withdrawal of the complaint does not result in its outright dismissal or discharge of the person complained of from any administrative liability.

Section 19. *Procedures in the Disposition of Sexual Harassment Cases.* (CSC Resolution No. 2100064 dated January 20, 2021).

a. Complaint

1. The complaint may be filed with the CODI Chairperson. Upon receipt of the complaint by the CODI Chairperson, the same shall be transmitted to the CODI. The complaint must be in writing, signed and sworn to by the complainant and contain the following:
 - i. The full name and address of the complainant;
 - ii. The full name, address, and position of the respondent;
 - iii. A brief statement of the relevant facts;
 - iv. Evidence in support of the complaint, if any; and
 - v. A certification of non-forum shopping.
2. The withdrawal of the complaint at any stage of the proceedings shall not preclude the CODI from proceeding with the investigation where there is obvious truth or merit to the allegations in the complaint or where there is documentary or direct evidence that can prove the guilt of the person complained of.

- b. Action on the Complaint.** Upon receipt of the complaint that is sufficient in form and substance, the

CODI shall require the person complained of to submit a Counter Affidavit/Comment under oath within three (3) calendar days from receipt of the notice, furnishing a copy thereof to the complainant.

c. Preliminary Investigation

1. A preliminary investigation shall be conducted by the CODI. The investigation involves the ex parte examination of documents submitted by the complainant and the person complained of, as well as the documents readily available from other government offices. The parties may submit affidavits and counter-affidavits. All proceedings before the CODI shall be held under strict confidentiality.
2. Upon receipt of the counter-affidavit or comment under oath, the CODI may recommend whether a *prima facie* case exists to warrant the issuance of a formal charge.
3. A preliminary investigation shall commence not later than five (5) calendar days from receipt of the complaint by the CODI and shall be terminated within fifteen (15) calendar days thereafter.

d. Investigation Report. Within five (5) calendar days of the termination of the preliminary investigation, the CODI shall submit the Investigation Report and the complete records of the case to the University President.

e. Decision or Resolution. If a *prima facie* case is established during the investigation, a formal charge shall be issued by the CODI within three (3) calendar days of receipt of the investigation report.

In the absence of a *prima facie* case, the complaint shall be dismissed within the same period.

- f. **Formal Charge.** After finding a *prima facie* case, the University President shall formally charge the person complained of. The formal charge shall contain a specification of the charge(s); a brief statement of materials or relevant facts, accompanied by certified true copies of the documentary evidence, if any; sworn statements covering the testimony of witnesses; a directive to answer the charge(s) in writing under oath in not less than seventy-two (72) hours from receipt thereof; an advice for the respondent to indicate in his/her answer whether or not he/she elects a formal investigation of the charge(s); and a notice that he/she is entitled to be assisted by a counsel of his/her choice.
- g. **Answer.** The answer which must be in writing and under oath, shall be specific and shall contain material facts and applicable laws, if any, including documentary evidence, sworn statements covering testimonies of witnesses, if there be any, in support of respondent's case. It shall include a statement indicating whether he/she elects a formal investigation.
- h. **Failure to File Answer.** If the respondent fails or refuses to file his/her answer to the formal charge within seventy-two (72) hours from receipt thereof without justifiable cause, he/she shall be considered to have waived his/her right thereto and formal investigation may commence.
- i. **Preventive Suspension**
 - 1. Upon petition of the complaint or *motu proprio* upon the recommendation of the CODI, at any time after the service of the formal charge to the respondent, the University President may order the preventive suspension of the respondent during the formal investigation, if there are reasons to believe that he/she is probably guilty

of the charges that would warrant his/her removal from service.

2. When the administrative case against the respondent under preventive suspension is not finally decided by the University President within the period of ninety (90) days of the date of his/her preventive suspension, unless otherwise provided by special law, he/she shall be automatically reinstated into the service.

- j. **Conduct of Formal Investigation.** A formal investigation shall be conducted by the CODI if it deems such investigation is necessary to decide the case judiciously, although the respondent does not request a formal investigation. It shall be held not earlier than five (5) calendar days nor later ten (10) calendar days from receipt of the respondent's answer. Said investigation shall be finished within thirty (30) calendar days of issuance of the formal charge or the receipt of the answer.
- k. **Pre-hearing Conference.** At the commencement of the formal investigation, the CODI may conduct a pre-hearing conference for the parties to appear, consider and agree on any of the following:
 1. Stipulation of facts;
 2. Simplification of issues;
 3. Identification and marking of evidence of the parties;
 4. Waiver of objections to admissibility of evidence;
 5. Limiting the number of witnesses, and their names;
 6. Dates of subsequent hearings; and
 7. Such other matters as may aid in the prompt and just resolution of the case.

- l. **Preliminary Matters.** At the start of the hearing, the Committee on Decorum and Investigation shall note the appearances of the parties and shall proceed with the reception of evidence for the complainant.
- m. **Appearance of Parties.** Any person representing any of the parties before any hearing or investigation shall manifest orally or in writing his/her appearance for either the respondent or complainant, stating his/her full name and exact address where he/she can be served with notices and other documents. Any pleading or appearance made without complying with the above stated requirements shall not be recognized.
- n. **Order of Hearing.** Unless the Committee on Decorum and Investigation directs otherwise, the order of hearing shall be as follows:
 - 1. The complainant shall present evidence in support of the charge;
 - 2. The respondent shall then offer evidence in support of his/her defense;
 - 3. The complainant may then offer rebuttal evidence, and the respondent, sur-rebuttal evidence.
- o. **Request for Subpoena.** If party desires the attendance of a witness or the production of documents of thins, he/she shall make a request for the issuance of the necessary subpoena, at least three (3) calendar days before the scheduled hearing.
- p. **Issuance of Subpoena.** The CODI may issue subpoena *ad testificandum* to compel the attendance of witness and subpoena *ducestecum* for the production of documents or objects.
- q. **Formal Investigation Report.** Within fifteen (15) calendar days of the conclusion of the formal investigation, a report containing a narration of the

material facts established during the investigation, the findings and evidence supporting said findings, as well as the recommendations shall be submitted by the CODI to the University President. The complete records of the case arranged systematically and chronologically shall be attached to the report of investigation.

- r. **Finality of Decisions.** The University President shall render the decision on the case within thirty (30) calendar days of receipt of the report of investigation. A decision rendered by the University President where a penalty of suspension for not more than thirty (30) calendar days or a fine in an amount not exceeding thirty (30) day's salary is imposed, shall be final and executory. However, if the penalty imposed is suspension exceeding thirty (30) days or a fine exceeding 30 day's salary, the same shall be final and executory after the lapse of the reglementary period for filing a motion for reconsideration or an appeal and no such pleading has been filed.
- s. **Appeal.** For decisions rendered by the University President, the party adversely affected may file the appeal before the Civil Service Commission.

Section 20. Acts that Constitute Administrative Offenses.
(CSC, Resolution No. 01-0940 dated May 21, 2011).

I. The Offense of Sexual Harassment.

A. Sexual Harassment in the Workplace

- a. Grave Offenses punishable by dismissal from the service shall include, but are not limited to:
 - i. unwanted touching of private parts of the body (inner thighs, genitalia, buttocks and breast);
 - ii. sexual assault;

- iii. malicious touching;
 - iv. requesting for sexual favor in exchange for employment, promotion, local or foreign travels, favorable working conditions or assignments, a passing grade, the granting of honors or scholarship, or the grant of benefits or payment of a stipend or allowance; and
 - v. other analogous cases.
- b. Less Grave Offenses punishable by suspension of one month and one day to six months for the first offense; and dismissal from the service for the second offense, shall include, but are not limited to:
- i. unwanted touching or brushing against a victim's body;
 - ii. pinching not falling under grave offenses;
 - iii. derogatory or degrading remarks or innuendoes directed toward the members of one sex, or one's sexual orientation or used to describe a person;
 - iv. verbal abuse with sexual overtones; and
 - v. other analogous cases.
- c. Light Offenses punishable by reprimand for the offense; suspension of one to thirty days for the second offense; and dismissal from the service for the third offense, shall include, but are not limited to:
- i. surreptitiously looking at a person's private part or worn undergarments;
 - ii. making sexist statements and uttering smutty jokes or sending these through text, electronic mail including but not

- limited to social media platform, causing embarrassment or offense and carried out after the offender has been advised that they are offensive or embarrassing or, even without such advice, when they are by their nature clearly embarrassing, offensive or vulgar;
- iii. malicious leering or ogling;
 - iv. display of sexually offensive pictures, materials or graffiti;
 - v. unwelcome inquiries or comments about a person's sex life;
 - vi. unwelcome sexual flirtation, advances, propositions;
 - vii. making offensive hand or body gestures at an employee;
 - viii. persistent unwanted attention with sexual overtones;
 - ix. unwelcome phone calls with sexual overtones causing discomfort, embarrassment, offense or insult to the receiver; and other analagous cases.

B. Sexual Harassment in Streets and Public Places

A government official or employee who commits sexual harassment in streets or public spaces as defined shall be meted the following penalties depending on the gravity of the offense:

- a. Light Offense of Sexual Harassment in Streets and Public Spaces is committed when a public official or employee engages in acts that include catcalling or wolf-whistling. Such acts are punishable by reprimand for the first offense, suspension of one (1) to thirty (30) days

for the second offense and dismissal from the service for the third offense.

- b. Less Grave Offense of Sexual Harassment in Streets and Public Spaces is committed when a public official or employee engages in acts that include unwanted invitations, misogynistic, transphobic and sexist slurs, persistent uninvited comments or gestures on a person's appearances, relentless request for personal details or making statements comments and suggestions with sexual innuendos such acts are punishable by suspension of one (1) month and one (1) day suspension to six (6) months for the first offense, and dismissal from the service for the second offense.
- c. Grave Offense of Sexual Harassment in Streets and Public Spaces is committed by a public official or employee who engages in acts that include public masturbation or flashing of private parts, groping, or any advances, whether verbal or physical, that is unwanted and has threatened one's sense of personal space and physical safety, and committed in public spaces as alleys, roads, sidewalks, and parks. Such acts are punishable by dismissal from the service.

C. Online Sexual Harassment

- a. Light Online Sexual Harassment is committed by a government official or employee who engages in acts that include unwanted sexual misogynistic, transphobic, homophobic and sexist

remarks and comments online whether publicly or through direct and private messages, invasion of victim's privacy through cyberstalking and incessant messaging with sexual overtones. Such acts are punishable by reprimand for the first offense; suspension of one (1) to thirty (30) days for the second offense; and dismissal from the service for the third offense.

- b. Less Grave Online Sexual Harassment is committed by a government official or employee who engages in acts that include the use information and communication technology in terrorizing and intimidating victims through physical, psychological, and emotional threats with sexual overtones. Such acts are punishable by suspension of one (1) month and one (1) day to six (6) months for the first offense; and dismissal from the service for the second offense.
- c. Grave Online Sexual Harassment punishable by dismissal from the service, includes uploading and sharing without the consent of the victim, any form of media that contains photos, voice, or video with sexual content, any unauthorized recording and sharing online of any of the victim's photos, videos, or any information of sexual content, impersonating identities of victims online or posting lies of sexual nature about the victims to harm their reputation, or filing false abuse reports to online platforms to silence victims of sexual harassment.

For the purpose of these Rules, the administrative offense of sexual harassment is further described in the following circumstances:

- a. Work-related sexual harassment is committed under the following circumstances:
 - i. submission to or rejection of the act or series of acts is used as a basis for any employment decision (including, but not limited to, matters related to hiring, promotion, raise in salary, job security, benefits and any other human resource action) affecting the applicant/employee; or
 - ii. the act or series of acts have the purpose or effect of interfering with the complainant's work performance, or creating an intimidating, hostile or offensive work environment; or
 - iii. the act or series of acts might reasonably be expected to cause discrimination, insecurity, discomfort, offense or humiliation to a complainant who may be a co-employee, applicant, customer, or word of the person complained of.
- b. Education or training-related sexual harassment is committed against one who is under the actual or constructive care, custody or supervision of the offender, or against one whose education, training, apprenticeship, internship or tutorship is directly or constructively entrusted to, or is provided by, the offender, when:
 - i. submission to or rejection of the act or series of acts as a basis for any decision affecting the complainant,

- including, but not limited to, the giving of a grade, the granting of honors or a scholarship, the payment of a stipend or allowance, or the giving of any benefit, privilege or consideration; or
- ii. the act or series of acts have the purpose or effect of interfering with the performance, or creating an intimidating, hostile or offensive academic environment of the complainant; or
 - iii. the act or series of acts might reasonably be expected to cause discrimination, insecurity, discomfort, offense or humiliation to a complainant who may be a trainee, apprentice, intern, tutee or ward of the person complained of.
- c. The offense may also take place in the following instances:
- i. in the premises of the workplace or office or of the school or training institution;
 - ii. in any place where the parties were found as a result of work or education or training responsibilities or relations;
 - iii. at work or education or training-related social functions;
 - iv. while on official business outside the office or school or training institution or during work or school or training-related travel;
 - v. at official conferences, fora, symposia or training sessions; or
 - vi. by telephone, cellular phone, fax machine or electronic mail, or any online platforms

Section 21. *Administrative Liabilities.* The head of the office who fails to act within fifteen (15) days from the receipt of any complaint for sexual harassment properly filed against any faculty member and employee in that office shall be charged with Neglect of Duty.

Any person who is found guilty of sexual harassment shall, after investigation, be meted the penalty corresponding to the gravity and seriousness of the offense.

Section 22. *Penalties.* The penalties for light, less grave, and grave offenses are as follows:

(a) For light offenses:

1st offense - Reprimand

2nd offense - Fine or suspension not exceeding thirty (30) days

3rd offense - Dismissal

(b) For less grave offenses:

1st offense - Fine or suspension of not less than thirty (30) days and not exceeding six (6) months

2nd offense - Dismissal

(c) For grave offense: Dismissal

(d) If the respondent is found guilty of two or more charges or counts, the penalty to be imposed should be that corresponding to the most serious charge or count and the rest shall be considered as aggravating circumstances.

Section 23. *Prescriptive Period.* Any complaint or action arising from the violation of these Implementing Rules and Regulations should be filed within three (3) years from commission of such violation, otherwise, the same shall be deemed to have prescribed.

Section 24. *Amendment.* The Cavite State University through its Committee on Decorum and Investigation may amend or

modify these IRR as may be necessary upon approval by the Administrative Council. All issuances, policies, rules and regulations which are inconsistent with this policy are hereby modified and amended accordingly.

Section 25. Effectivity Clause. The Implementing Rules and Regulations shall take effect immediately upon approval by the Administrative Council.

References:

- CHED Memorandum Order No. 03, Series of 2022, Guidelines on Gender-Based Sexual Harassment in Higher Education Institutions
- Civil Service Commission Resolution No. 2100064, Administrative Disciplinary Rules on Sexual Harassment Cases, January 20, 2021.
- Republic Act No. 11313 of 2019, An Act Defining Gender-Based Sexual Harassment in Streets, Public Spaces, Online, Workplaces, Educational or Training Institutions, Providing Protective measures and Prescribing Penalties Therefor, otherwise known as the “Safe Spaces Act”.
- Commission of Higher Education Memorandum No. 01 Series of 2015, Establishing the Policies and Guidelines on Gender and Development in the Commission on Higher Education and Higher Education Institutions (HEIs), January 26, 2015.
- Civil Service Commission Resolution No. 01-0940, Administrative Disciplinary Rules on Sexual Harassment Cases, May 21, 2001.
- Republic Act No. 7877, An Act Declaring Sexual Harassment Unlawful in the Employment, Education or Training Environment, and for other Purposes, otherwise known as Anti-Sexual Harassment Act of 1995

SERVICES OFFERED

1. CAPACITY BUILDING

A. SEMINAR/WORKSHOP/TRAINING ON:

- Gender Sensitivity
- GAD Planning and Budgeting
- GAD Accomplishment Report
- Gender Analysis and GAD Tools
- Harmonized GAD Guidelines
- Gender-Responsive LGU (GeRL) Assessment Tool
- Gender Mainstreaming
 - Integration of GAD in Instruction
 - Integration of GAD in Research
 - Integration of GAD in Extension
- Responsible Parenthood and Family Planning
- Others

B. ORIENTATION ON:

- The Magna Carta of Women of 2009 (RA 9710)
- Gender and Development
- Use of Gender-Fair Language
- Safe Space Act 2019 (RA 11313)
- Anti-Violence Against Women and their Children Act of 2004 (RA 9262)
- Anti-Rape Law of 1997 (RA 8353)
- Anti-Bullying Act of 2013 (RA 10627)
- Anti-Trafficking in Persons Act of 2003, the Expanded Anti-Trafficking in Persons Act of 2012 (RA 10364) and Expanded Anti-Trafficking in Persons Act of 2022 (RA 11862)
- Magna Carta of Women for Disabled Persons of 1992 (RA 7277)
- Gender Equality, Disability and Social Inclusion (GEDSI)
- Inclusive Disaster Risk Reduction and Management (IDRRM)
- Sexual Orientation, Gender Identity and Expression (SOGIE)
- Others

2. LIVELIHOOD AND ENTREPRENEURSHIP

- Rag Making
- Baking
- Food Processing
- Others

3. COUNSELLING